

VHA PRIVACY PROGRAM

1. REASON FOR ISSUE. This Veterans Health Administration (VHA) Directive establishes a VHA-wide program for the protection of the privacy of veterans, their dependents, and beneficiaries in accordance with Federal privacy statutes and regulations, as well as establishes privacy policies to comply with the Department of Veterans Affairs (VA) Directive 6502.

2. SUMMARY OF CONTENTS/MAJOR CHANGES. This VHA Directive sets forth:

a. Policy for the VHA Privacy Program. This policy requires VA-wide compliance with all applicable privacy laws, regulations, Executive Orders and implementation policies, guidance, directives, and handbooks.

b. Provision of the Freedom of Information Act, Privacy Act, Title 38 United States Code (U.S.C.) (U.S.C. Sections 5701, 5705, 7332), and Standard of Privacy of Individually-Identifiable Health Information, 45 Code of Federal Regulations (CFR) Parts 160 and 164, hence Health Insurance Portability and Accountability Act (HIPAA) Privacy Rule.

c. Responsibilities for implementing and managing the VHA-wide Privacy Program; and

d. References related to the VHA Privacy Program.

3. RELATED HANDBOOKS. VHA Handbook 1605.1 and VHA Handbook 1605.2.

4. RESPONSIBLE OFFICE. The VHA Office of Health Data and Informatics (19F) is responsible for the contents of this Directive. Questions may be referred to the VHA Privacy Officer at 727-320-1839.

5. RESCISSIONS. None.

6. RECERTIFICATION. This VHA Directive is scheduled for recertification on or before the last day of March 2010.

S/ Jonathan Perlin, MD, PhD, MSHA, FACP
Acting Under Secretary for Health

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VHA PRIVACY PROGRAM

1. PURPOSE: This VHA Directive provides policy and responsibilities for the VHA Privacy Program; and covers the responsibilities and requirements for compliance with all Federal confidentiality laws and regulations.

2. BACKGROUND: The VHA Privacy Program applies to:

a. Personal data that identifies an individual (herein referred to as “individually-identifiable information”) that is collected, created, transmitted, used, processed, stored, or disposed of by or for VHA; and

b. VHA components pertaining to all individually-identifiable information, which is maintained in any medium, including hard copy, microfilm, and electronic format and by information systems administrated by, or otherwise under the authority or control of, the Department of Veterans Affairs (VA).

3. POLICY: It is VHA policy that a VHA-wide Privacy Program be implemented through the VHA Privacy Office in the Office of Health Data and Informatics.

4. RESPONSIBILITIES

a. **VHA Chief Health Informatics Officer (CHIO).** The VHA CHIO is responsible for:

(1) Ensuring that Department-wide privacy policies and procedures are implemented through the VHA Privacy Program; and

(2) Seeking technical guidance and requirements for the protection of all privacy-protected data from the VA Privacy Service for the development and approval of cyber security acquisitions, budgeting, and funding.

b. **VHA Privacy Officer.** The VHA Privacy Officer is responsible for:

(1) Performing all privacy duties and responsibilities as designated by the VA Privacy Service and VHA CHIO;

(2) Developing and implementing a VHA Privacy Program;

(3) Developing, issuing, reviewing, and coordinating privacy policy for VHA in conjunction with policy efforts by VA;

(4) Coordinating requirements and monitoring compliance with all Federal privacy law, regulations, and guidance with VHA;

(5) Issuing direction to facility-level Privacy Officers regarding all aspects of implementing the VHA Privacy Program;

- (6) Establishing requirements for the responsibilities of facility-level Privacy Officers and providing implementation guidance, as needed;
- (7) Providing VHA-specific privacy training tools and periodically monitoring compliance with the annual training requirement;
- (8) Examining new or pending legislation, in conjunction with the Office of General Counsel, to determine the actual or potential impact of such legislation on privacy policy and/or practice at VHA;
- (9) Establishing VHA policy on the reporting, tracking, resolution, and auditing of VHA privacy violations and complaints;
- (10) Ensuring VHA resolves all privacy breaches in a timely fashion and in accordance with applicable law;
- (11) Reporting all actual or suspected breaches of privacy of individually-identifiable information observed or received at the national level to the tracking service designated by the VA Privacy Service;
- (12) Coordinating investigation of and response to privacy complaints received from the Department of Health and Human Services, Office of Civil Rights;
- (13) Maintaining a Notice of Privacy Practices; and
- (14) Providing expert guidance to the field in regard to the Privacy Act, Title 38 United States Code (U.S.C.) Sections 5701 and 7332, Health Insurance Portability and Accountability Act (HIPAA) Privacy Rule, and other applicable Federal privacy laws.

c. **Veterans Integrated Service Network (VISN) Director and Chief Program Officers.**
The VISN Directors and Chief Program Officers are responsible for:

- (1) Ensuring compliance within their respective programs with all Federal laws, regulations, VA regulation and policies, and VHA policies relating to privacy;
- (2) Ensuring that all personnel within their respective programs attend annual privacy training in accordance with applicable requirements and VHA privacy policy;
- (3) Ensuring that all personnel within their respective programs attend privacy training before they are granted access to any individually-identifiable information, and that personnel receive the follow-up privacy training periodically;
- (4) Implementing the requirements of the VHA Privacy Program; and
- (5) Designating an individual to provide guidance and oversight to ensure compliance with privacy regulations for their respective programs.

d. **Medical Center Director.** The Medical Center Director is responsible for:

- (1) Ensuring there is a Privacy Officer at the facility; and
- (2) Ensuring facility policies and procedures consistent with policies contained in this Directive are established and distributed to all employees.

e. **Privacy Officer.** The Privacy Officer is assigned responsibility for:

- (1) Developing facility privacy policies consistent with national privacy policies and monitoring compliance with such privacy policies;
- (2) Reviewing or auditing all programs at the facility on a periodic basis to determine which programs collect, maintain, and store individually-identifiable information in order to ensure compliance with facility privacy policies;
- (3) Reporting, in a timely manner, all actual or suspected breaches of privacy of all individually-identifiable information to the tracking service designated by the VA Privacy Service; and
- (4) Providing expert guidance to the facility on all privacy related matters such as Privacy Act (PA), Freedom of Information Act (FOIA), HIPAA and 38 U.S.C.

f. **VHA Personnel.** All VHA personnel are responsible for:

- (1) Complying with all Federal laws and regulations, VA regulations and policies, and VHA policies relating to privacy;
- (2) Completing privacy training at the time of employment, annually thereafter, and within 6 months of a significant change in Federal law and regulation or VHA privacy policy;
- (3) Reporting all actual or suspected breaches of privacy in a timely and complete manner to the appropriate privacy official; and
- (4) Using, disclosing, or requesting individually-identifiable information to the minimum amount necessary required to perform their specific job function and to accomplish the intended purpose of the use, disclosure, or request.

5. REFERENCES

- a. Title 38 U.S.C. 5701.
- b. Title 38 U.S.C. 5705.
- c. Title 38 U.S.C. 7332.

- d. Title 38 Code of Federal Regulations (CFR) §§1.500-527.
- e. Title 38 CFR §§17.500-511.
- f. Title 38 CFR §§1.460-496.
- g. Title 38 CFR §§1.550-557.
- h. Title 38 CFR §§1.575-582.
- i. Title 45 CFR, Parts 160 and 164.
- j. Public Law 104-191.
- k. Office of Management and Budget (OMB) Circular A-130, Appendix I.
- l. VA Directive 6502

6. DEFINITIONS

a. **Compliance.** For the purpose of this Directive, the term “compliance” means the act of complying with policies, procedures, directives, laws, and other legal guidance.

b. **Individually-Identifiable Information.** Individually-identifiable information is any information, including health information maintained by VHA, pertaining to an individual that also identifies the individual and, except for individually-identifiable health information, is retrieved by the individual’s name or other unique identifier. Individually-identifiable health information is covered regardless of whether or not the information is retrieved by name.

c. **Personnel.** For the purpose of this Directive, the term “personnel” includes those officers and employees of the Department; consultants and attending clinicians; without compensation (WOC) employees; contractors; others employed on a fee basis; medical students and other trainees; and volunteer workers rendering uncompensated services, excluding patient volunteers, providing a service at the direction of VA staff. ***NOTE: Compensated Work Therapy (CWT) workers are not VHA personnel; they are patients receiving active treatment or therapy.***

d. **VHA Privacy Program.** The VHA Privacy Program is the effort within VHA to establish and implement privacy policies and practices that comply with the requirements of all applicable Federal privacy laws and regulations, VA regulations and VA privacy policies. The VHA Privacy Program at a minimum should address privacy policies, privacy training, use and disclosure of information, individual’s privacy rights, privacy complaints, notice of privacy practices and privacy compliance monitoring.

42.062 Repealed, 1982.

Catchline at repeal: Definition for KRS 42.064 and 42.066.

History: Repealed 1982 Ky. Acts ch. 393, sec. 51, effective July 15, 1982. -- Created 1962 Ky. Acts ch. 106, Art. V, sec. 5

Form 3-1

Distribution:	Executive Order G-70-163-AA Exhibit 3		Report No.: _____
	Summary of Source Test Results		Test Date: _____
			Test Times:
			Run A: _____
		Run B: _____	
		Run C: _____	

Source Information		Facility Parameters	
GDF Name and Address _____ _____ _____	GDF Representative and Title _____ _____	PHASE I SYSTEM TYPE (Check One)	
	GDF Phone No. ()	Two Point	☐
		Coaxial	☐
	Permit Conditions	Source: GDF Vapor Recovery System	PHASE II SYSTEM TYPE
GDF # _____ A/C # _____		OPW VaporEZ	
		Manifolded?	Y or N

Operating Parameters:			
Number of Nozzles Served by Tank #1	_____	Number of Nozzles Served by Tank #3	_____
Number of Nozzles Served by Tank #2	_____	Total Number of Gas Nozzles at Facility	_____

Applicable Regulations:	FOR OFFICE USE ONLY:
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Source Test Results and Comments:

TANK #:

	1	2	3	TOTAL
1. Product Grade	_____	_____	_____	_____
2. Actual Tank Capacity, gallons	_____	_____	_____	_____
3. Gasoline Volume, Gallons	_____	_____	_____	_____
4. Ullage, gallons (#2 -#3)	_____	_____	_____	_____
5. Phase I System Type	_____	_____	_____	_____
6. Initial Test Pressure, Inches H ₂ O (2.0)	_____	_____	_____	_____
7. Pressure After 1 Minute, Inches H ₂ O	_____	_____	_____	_____
8. Pressure After 2 Minutes, Inches H ₂ O	_____	_____	_____	_____
9. Pressure After 3 Minutes, Inches H ₂ O	_____	_____	_____	_____
10. Pressure After 4 Minutes, Inches H ₂ O	_____	_____	_____	_____
11. Final Pressure After 5 Minutes, Inches H ₂ O	_____	_____	_____	_____
12. Allowable Final Pressure from Table 3-I	_____	_____	_____	_____
13. Test Status [Pass or Fail]	_____	_____	_____	_____

Test Conducted by:	Test Company Name _____ Address _____ City _____	Date and Time of Test:
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§ 117.959

shall be raised until the obstruction is cleared.

(c) After a train has cleared the bridge, the draw shall be raised to 81.4 feet above mean high water, the flashing red lights stopped, and the navigation lights changed from red to green.

§ 117.959 Chocolate Bayou.

The draw of the Union Pacific railroad bridge, mile 11.4 at Liverpool, need not be opened for the passage of vessels.

§ 117.963 Colorado River.

The draw of the highway bridge, mile 10.7 at Wadsworth need open on signal Monday through Friday only, and then only from 8 a.m. to 5 p.m. At least 48 hours notice is required.

[CGD8-90-22, 56 FR 488, Jan. 7, 1991]

§ 117.965 Cow Bayou.

The draws of the Orange County highway bridge, mile 2.9 at West Orange, and the S87 bridge, mile 4.5 at Bay City, shall open on signal if at least six hours notice is given.

§ 117.967 Greens Bayou.

The draw of the Port Terminal Railroad Association railroad bridge, mile 2.8 at Houston, shall open on signal if at least four hours notice is given. The draw shall open on signal for three hours thereafter for returning downbound vessels.

§ 117.968 Gulf Intracoastal Waterway.

The draw of the Port Isabel bridge, mile 666.0, shall open on signal; except that, from 5 a.m. to 8 p.m. on weekdays only, excluding holidays, the draw need open only on the hour for pleasure craft. The draw shall open on signal at any time for commercial vessels, for a vessel in distress, or for an emergency aboard a vessel. When the draw is open for a commercial vessel, waiting pleasure craft shall be passed.

[CGD8-90-10, 56 FR 14644, Apr. 11, 1991]

§ 117.969 Lavaca River.

The draws of the Union Pacific railroad bridge, mile 11.2, and the highway bridge, mile 11.2, both at Vanderbilt, shall open on signal if at least 48 hours

33 CFR Ch. I (7-1-04 Edition)

notice is given. In emergencies, the draws shall open as soon as possible.

§ 117.971 Neches River.

(a) The draw of the Kansas City Southern automated bridge, mile 19.5, at Beaumont, is not constantly manned and is operated from a remote site in Shreveport, Louisiana. The bridge is normally maintained in the closed to navigation position, providing 13 feet of vertical clearance above mean high tide. This bridge will open on signal.

(1) Mariners may request a bridge opening at anytime via one of the following methods:

- (i) Telephone at 1-877-829-6295;
- (ii) Marine radio on VHF-FM Channel 16; or

(iii) Proper sound signal as prescribed in § 117.15.

(2) When signaling by sound, if return sound signal is not sent from the remote bridge operator, in compliance with § 117.15, contact the remote operator via telephone or marine radio.

(3) An audible warning siren will sound when the bridge is in motion. Video cameras will constantly monitor the waterway near and under the draw. Once a vessel has passed through the bridge, the draw will lower, provided the infrared "under bridge" presence detector and video cameras reveal nothing under the draw.

(b) The draw of the Burlington Northern Santa Fe railroad bridge, mile 53.9 at Evadale, need not be opened for the passage of vessels.

[CGD 82-025, 49 FR 17452, Apr. 24, 1984, as amended by CGD 08-00-026, 65 FR 71059, Nov. 29, 2000]

§ 117.975 Old Brazos River.

The draw of the Union Pacific railroad bridge, mile 4.4 at Freeport, shall be maintained in the fully open position, except for the crossing of trains or for maintenance.

§ 117.977 Pelican Island Causeway, Galveston Channel.

The draw of the Pelican Island Causeway bridge across Galveston Channel, mile 4.5 of the Galveston Channel, (GIWW mile 356.1) at Galveston, Texas, shall open on signal; except that, from 6:40 a.m. to 8:10 a.m., 12 noon to 1 p.m.,

GenePattern

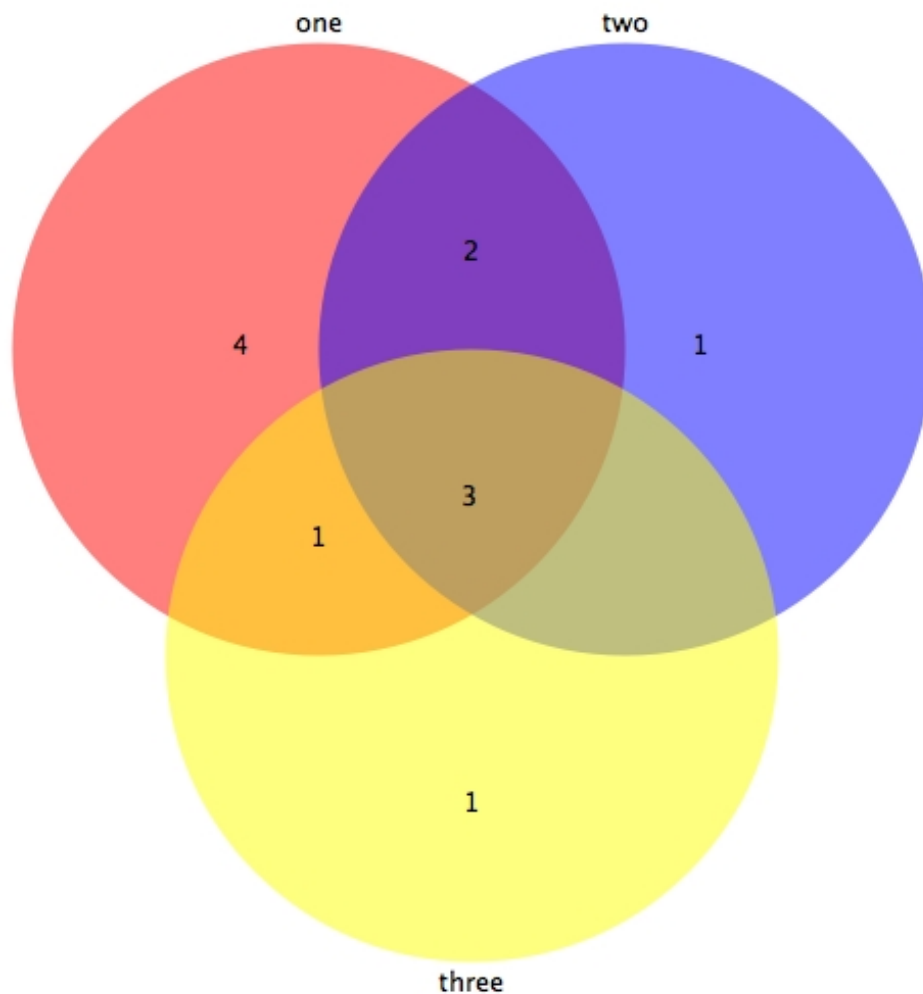
VennDiagram Documentation

Description: Displays a Venn diagram.

Author: Joshua Gould (Broad Institute), gp-help@broad.mit.edu

Summary:

Displays a Venn diagram illustrating set overlap. See the [file format section](#) of the GenePattern documentation for a description of the grp file format.



Parameters

feature.list.one	Feature list one - .txt, .grp
feature.list.two	Feature list two - .txt, .grp
feature.list.three	Feature list three - .txt, .grp

GenePattern

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